Number 16 *of* 1996

PROTECTION OF YOUNG PERSONS (EMPLOYMENT) ACT 1996

REVISED

Updated to 30 June 2018

This Revised Act is an administrative consolidation of the *Protection of Young Persons (Employment) Act 1996*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Childcare Support Act 2018* (11/2018), enacted 2 July 2018, and all statutory instruments up to and including *European Communities (Reception Conditions) Regulations 2018* (S.I. No. 230 of 2018), made 29 June 2018, were considered in the preparation of this revision.

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AN ACT TO REVISE AND EXTEND THE LAW RELATING TO THE PROTECTION OF YOUNG PERSONS IN EMPLOYMENT AND TO ENABLE EFFECT TO BE GIVEN TO COUNCIL DIRECTIVE NO. 94/33/EC OF 22 JUNE 1994 ON THE PROTECTION OF YOUNG PEOPLE AT WORK (OTHER THAN ARTICLES 6 AND 7) AND FOR THOSE PURPOSES TO REPEAL THE PROTECTION OF YOUNG PERSONS (EMPLOYMENT) ACT, 1977, AND CERTAIN PROVISIONS OF THE CONDITIONS OF EMPLOYMENT ACT, 1936, AND TO PROVIDE FOR RELATED MATTERS. [26*th June*, 1996]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

Interpretation.

1.—(1) In this Act—

"agreement" means a collective agreement, an employment regulation order or a registered employment agreement;

"break" means the interval during which a child or young person may not be permitted under this Act to work;

["child" means a person who has not reached the age of 16 years;**]**

"collective agreement" means an agreement by or on behalf of an employer on the one hand, and by or on behalf of a trade union or trade unions representative of the employees to whom the agreement relates on the other hand;

"contract of employment" means—

(*a*) a contract of service or apprenticeship, and

(*b*) any other contract whereby an individual agrees with another person, who is carrying on the business of an employment agency within the meaning of the Employment Agency Act, 1971, and is acting in the course of that business, to do or perform personally any work or service for a third person (whether or not the third person is party to the contract),

whether the contract is express or implied or if express, whether it is oral or in writing;

"the Council Directive" means Council Directive No. 94/33/EC of 22 June 1994[(1)] on the protection of young people at work, the text of which, with the exception of Section II and the Annex thereto, is set out for convenience of reference in the *First Schedule*',

"day" means a period of 24 consecutive hours commencing at midnight;

OJ. No. L216, 20.8.94, p. 12.

Section I

FIRST SCHEDULE

COUNCIL DIRECTIVE 94/33/EC OF 22 JUNE 1994

on the protection of young people at work

THE COUNCIL OF THE EUROPEAN UNION,

Having regard to the Treaty establishing the European Community, and in particular Article 118a thereof,

Having regard to the proposal from the Commission [(1)],

Having regard to the opinion of the Economic and Social Committee [(2)],

Acting in accordance with the procedure referred to in Article 189c of the Treaty [(3)],

Whereas Article 118a of the Treaty provides that the Council shall adopt, by means of directives, minimum requirements to encourage improvements, especially in the working environment, as regards the health and safety of workers;

Whereas, under that Article, such directives must avoid imposing administrative, financial and legal constraints in a way which would hold back the creation and development of small and medium-sized undertakings;

Whereas points 20 and 22 of the Community Charter of the Fundamental Social Rights of Workers, adopted by the European Council in Strasbourg on 9 December 1989, state that:

> '20. Without prejudice to such rules as may be more favourable to young people, in particular those ensuring their preparation for work through vocational training, and subject to derogations limited to certain light work, the minimum employment age must not be lower than the minimum school-leaving age and, in any case, not lower than 15 years;
>
> 22. Appropriate measures must be taken to adjust labour regulations applicable to young workers so that their specific development and vocational training and access to employment needs are met.
>
> The duration of work must, in particular, be limited — without it being possible to circumvent this limitation through recourse to overtime — and night work prohibited in the case of workers of under eighteen years of age, save in the case of certain jobs laid down in national legislation or regulations';

Whereas account should be taken of the principles of the International Labour Organization regarding the protection of young people at work, including those relating to the minimum age for access to employment or work;

Whereas, in this Resolution on child labour[(4)], the European Parliament summarised the various aspects of work by young people and stressed its effects on their health,

OJ No C 84, 4.4.1992, p. 7.

OJ No C 313, 30.11.1992, p. 70.

Opinion of the European Parliament of 17 December 1992 (OJ No C 21, 25. 1. 1993, p. 167). Council Common Position of 23 November 1993 (not yet published in the Official Journal) and Decision of the European Parliament of 9 March 1994 (OJ No C 91, 28. 3. 1994, p. 89).

OJ No C 190, 20.7.1987, p. 44.